Data Processing Agreement (DPA)

Last Updated: 21 March 2026

This Data Processing Agreement ("DPA") is an addendum to the Terms of Service between NeuroVitality Ltd. ("Processor") and you ("Controller"). This DPA reflects the parties' agreement with regard to the processing of Personal Data.

1. Definitions

- **"Controller"**, **"Processor"**, **"Data Subject"**, **"Personal Data"**, and **"Processing"** shall have the meanings given to them in the GDPR.
- **"GDPR"** means the Regulation (EU) $^{2016}/_{679}$ of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data.

2. Processing of Personal Data

- **Roles of the Parties:** The parties acknowledge and agree that with regard to the Processing of Personal Data, the Controller is the Controller and the Processor is the Processor.
- **Controller's Instructions:** The Processor shall only Process Personal Data on behalf of and in accordance with the Controller's documented instructions. The Controller instructs the Processor to Process the Personal Data to provide the Service as described in the Terms of Service.
- **Confidentiality:** The Processor shall ensure that its personnel engaged in the Processing of Personal Data are informed of the confidential nature of the Personal Data and are subject to a duty of confidentiality.

3. Security Measures

The Processor shall implement and maintain appropriate technical and organizational security measures to protect the Personal Data against accidental or unlawful destruction, loss, alteration, unauthorized disclosure, or access. These measures include, but are not limited to:

- Encryption of Personal Data in transit and at rest.
- Strict access controls and authentication mechanisms.
- Regular security assessments and vulnerability scanning.
- A security incident response plan.

(For a detailed overview, please refer to our Security Overview document.)

4. Sub-processors

The Controller agrees that the Processor may engage third-party sub-processors to process Personal Data on the Controller's behalf. The Processor will maintain a list of sub-processors and will notify the Controller of any intended changes concerning the addition or replacement of sub-processors.

The Processor will impose on such sub-processors data protection obligations that are no less protective than those in this DPA.

5. Data Subject Rights

The Processor shall, to the extent legally permitted, promptly notify the Controller if it receives a request from a Data Subject to exercise their rights under the GDPR. The Processor will provide the Controller with reasonable cooperation and assistance in relation to any such request.

6. Data Breach Notification

The Processor shall notify the Controller without undue delay after becoming aware of a Personal Data Breach. The notification will include information about the nature of

the breach, the number of Data Subjects affected, and the measures taken by the Processor to address the breach.

7. Data Deletion

Upon termination of the Service, the Processor shall, at the choice of the Controller, delete or return all Personal Data to the Controller, and delete existing copies unless applicable law requires storage of the Personal Data.

8. Audits

The Processor shall make available to the Controller all information necessary to demonstrate compliance with the obligations laid down in this DPA and allow for and contribute to audits, including inspections, conducted by the Controller or another auditor mandated by the Controller.

9. Liability

The liability of each party under this DPA shall be subject to the limitations and exclusions of liability set out in the Terms of Service.

10. Contact

For any questions regarding this DPA, please contact us at legal@neurovitalityltd.com.